

SUPREME COURT FOR THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RAJALAKSHMI ZAWISTOWSKI,
Plaintiff,

-against-

THE CITY OF NEW YORK (NYC), NEW YORK CITY
POLICE DEPARTMENT (NYPD), POLICE OFFICER
RIVERA, Tax Reg. No. 942442, individually and in his/her
official capacity, UNIDENTIFIED OFFICERS OF THE
NEW YORK CITY POLICE DEPARTMENT, individually
and in their official capacity,

Defendants.
-----X

INDEX No.
Date Purchased:

SUMMONS

Plaintiff designates
New York County
as the Place of Venue

Venue is based upon
the location of
incident

**JURY TRIAL
DEMANDED**

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the verified complaint in this action and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance, on Plaintiff's Attorney within twenty (20) days after the service of the summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
March 10, 2017

BARKET MARION EPSTEIN & KEARON, LLP

By: _____

Amy B. Marion, Esq.
666 Old County Road-Suite 700
Garden City, New York 11530
(516) 745-1500

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
New York City Law Department
Office of Corporation Counsel
100 Church Street
New York, NY 10007

POLICE OFFICER RIVERA
ONE POLICE PLAZA
New York, New York 10038

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VERIFIED
COMPLAINT
Index No:

Plaintiff designates
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**JURY TRIAL
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-----X
Plaintiffs, appearing by her attorney, BARKET, MARION, EPSTEIN & KEARON, LLP,
hereby allege against Defendants as follows:

PARTIES

1. Plaintiff, Rajalakshmi Zawistowski, is a resident Syosset, New York.
2. At all times hereinafter mentioned, the Defendant City of New York (NYC) was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times relevant and all times mentioned herein, the defendant City of New York, its agents, servants and employees operated, maintained and controlled THE NEW YORK CITY POLICE DEPARTMENT (NYCPD), including all the police officers thereof and that NYC is vicariously liable for the violations of New York State tort law by its servants, agents and employees via the principle of respondeat superior as at all times relevant POLICE OFFICER RIVERA and the UNIDENTIFIED NYCPD OFFICERS,

were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

4. Upon information and belief, that at all times relevant and all times mentioned herein, POLICE OFFICER RIVERA was employed by the defendant, CITY OF NEW YORK, as police officers in New York City, New York.

5. THE NEW YORK CITY POLICE DEPARTMENT, is a local governmental agency, duly formed and operating under and by virtue of the laws and Constitution of the State of New York and the Commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees.

6. Each and all of the acts of the Defendants alleged herein were performed by the Defendants, their agents, servants and employees, and each of them not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and under the authority of their office as police officers of said state and city.

NOTICE OF CLAIM

7. That on or about January 8, 2016, within ninety (90) days after the claim herein sued upon accrued, Plaintiff filed with Defendants a written Notice of Claim setting forth the time, place, nature and manner in which the claim arose.

8. That more that more than thirty (30) days have elapsed from the date that said Notice of Claim was filed and Defendants have neglected and refused to make payment or adjust said claim.

9. That Defendants demanded a statutory hearing of Plaintiff and said hearing was

held on April 29, 2016.

10. That this action was commenced within one (1) year from the date of the cause of action accrued hereafter.

FACTS

11. On December 12, 2015 at approximately twenty minutes after four o'clock in the afternoon, Plaintiff was shopping in a private store located at 46 Christopher Street in the County of New York.

12. At that time, Defendants assaulted Plaintiff.

DAMAGES

13. Plaintiff incurred mental anguish, emotional distress, physical pain and injury.

14. As a result of this assault Plaintiff suffered humiliation, indignities, embarrassment, and degradation, and was otherwise injured.

FIRST CAUSE OF ACTION

15. Plaintiff hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

16. Upon information and belief, defendants did intentionally assault Plaintiff, placing her in fear of imminent danger and/or bodily harm, and subjected Plaintiff to great pain and physical injury by virtue of their conduct including, but not limited to, the unwarranted and unjustified assault and attack of Plaintiff.

17. As a direct and proximate result of said acts, Defendants caused Plaintiff to suffer physical injuries and damages, as well emotional injuries and damages, which were foreseeable to the Defendants at the time of their acts, and which continue to date into the future.

18. The aforesaid injuries did not result from any negligence or fault on the part

of the Plaintiff herein.

19. Plaintiffs additionally rely upon the doctrine of *res ipsa loquitur*.

20. At the time and place of the occurrences herein described, the individually named Defendant officers were acting in the course and scope of their employment by the defendant NYC.

22. That the defendant NYC is liable for the acts of the individually named Defendants under the doctrine of *respondeat superior*.

23. By reason of the foregoing, Plaintiff demands compensatory damages and punitive damages against all of the Defendants.

WHEREFORE, Plaintiff prays for relief as follows:

A. That the Court award compensatory damages to him and against the defendants jointly and severally, in an amount to be determined at trial;

B. That the Court award punitive damages to him, and against all defendants, in an amount, to be determined at trial, that will deter such conduct by defendants in the future;

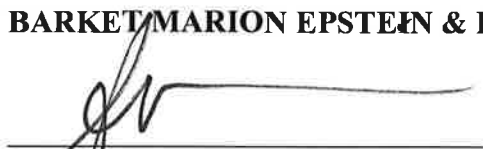
C. For a trial by jury;

D. For a pre-judgment and post-judgment interest and recovery of his costs, and

E. For any and all other relief to which he may be entitled.

Dated: March 10, 2017
Garden City, New York

BARKET MARION EPSTEIN & KEARON

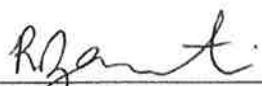
By: 

Amy Marion, Esq.
666 Old County Road-Suite 900
Garden City, N.Y. 11530
(516) 745-0101

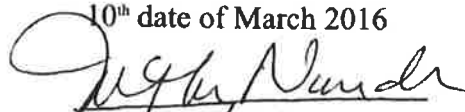
VERIFICATION

I, Rajalakshmi Zawistowski, a Plaintiff in this proceeding, being duly sworn, states:

I have read the annexed Verified -Complaint and I know its contents thereof and the same are true to my knowledge, except those matters that constitute legal argument or are alleged on information and belief, and as to those matters, I believe them to be true. I am familiar with the underlying facts and circumstances of the action.


RAJALAKSHMI ZAWISTOWSKI,

Sworn to before me this
10th date of March 2016


Notary Public

JOTHY NARENDHAN
Notary Public, State of New York
No. 02NA6268931
Qualified in Nassau County
Commission Expires September 17, 2020